MANILA LAW COLLEGE

CRIMINAL LAW 1 MASTER SYLLABUS COMPENDIUM

The Revised Penal Code (Book I, Articles 1–113) Annotated with Justice Luis B. Reyes

Course Outline: Atty. Shander A. Matienzo | First Semester, Academic Year 2026–2027

Juris Doctor Program | Complete Doctrinal Matrix, Statutory Elements & Landmark Jurisprudence

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MANILA LAW COLLEGE — CRIMINAL LAW 1 MASTER COMPENDIUM

Complete Syllabus Topic Extraction & Luis B. Reyes Annotated Treatise (Book I, Articles 1–113 RPC)

Course: Criminal Law 1 (3 Units) | First Semester, AY 2026–2027

Professor: Atty. Shander A. Matienzo

Primary Reference: *The Revised Penal Code: Criminal Law (Book One, Articles 1–113)* by Justice Luis B. Reyes (Annotated)

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Part I: General Principles of Criminal Law

(Syllabus Pages 1–5; Codal Articles 1, 2, 5, 21, 22 RPC; Civil Code Articles 2, 4, 14; 1987 Constitution Art. I, Art. II, Art. III, Art. VI)

1. Definition and Nature of Criminal Law

- **Luis B. Reyes Definition (citing 12 Cyc. 129):**

> *"Criminal law is that branch or division of law which defines crimes, treats of their nature, and provides for their punishment."*

- **Nature:**

8. **Substantive Law:** Defines offenses, creates criminal liabilities, and prescribes corresponding penalties. It defines the State's right to inflict punishment (*jus puniendi*).
9. **Public Law:** Treats of the relations between the individual and the sovereign State. A crime is considered an assault against the peace, tranquility, and dignity of the entire community, which is why prosecutions are brought in the name of the *People of the Philippines* (People v. Santiago, 43 Phil. 120).

- **Statutory Exclusivity:** There are **NO common-law crimes** in the Philippines. An act or omission is not a crime unless a valid written penal statute explicitly defines and punishes it (*Nullum crimen, nulla poena sine lege*).

2. Theories and Philosophies of Criminal Law

Philosophical Theory	Basis of Criminal Liability	Purpose of Penalty	Manifestation in Philippine Law
Classical (Juridical) Theory	**Human Free Will**: Man is an intelligent moral actor with absolute free will to choose between good and evil.	**Retribution & Justice**: Proportional penal suffering (*punitur quia peccatum est* / "an eye for an eye").	**Revised Penal Code (Predominant)**: Fixed, graduated, mathematically calibrated penalties based on the objective gravity of the crime.
Positivist (Realistic) Theory	**Determinism / Social Factors**: Man is subdued by social, economic, biological, and psychological phenomena compelling him to act.	**Prevention & Reformation**: Treatment of the offender as a socially ill person (*punitur ne peccetur*).	**Special Penal Statutes**: Juvenile Justice Act (R.A. 9344), Probation Law (P.D. 968), Indeterminate Sentence Law (Act 4103).
Eclectic / Mixed Theory	**Dual Approach**: Retribution for grave felonies; rehabilitation for minor offenses and youthful offenders.	**Balanced Deterrence & Correction**: Retributive baseline tempered by social defense and restorative mechanisms.	**Modern Framework**: The RPC remains predominantly classical, but incorporates positivist mitigating circumstances (e.g., incomplete defense, minority, illness, lack of education).

Utilitarian / Protective Theory	**Protection of Society**: Maximizing social welfare and deterring future infractions through general deterrence.	**Deterrence & Quarantine**: Preventing recidivism by incapacitating dangerous individuals.	Special regulatory laws, anti-terror statutes, and protective preventive measures.

- **Landmark Case Applications in Syllabus:**
- People v. Marivic Genosa (G.R. No. 135981, Sept. 29, 2000 & Jan. 15, 2004): Introduces Battered Woman Syndrome into Philippine law, demonstrating how repeated domestic trauma creates psychological conditioning modifying classical free-will doctrines.
- Norma de Joya v. Jail Warden (G.R. Nos. 15948-19, Dec. 10, 2003): Humane custodial treatment and constitutional protection of detention prisoners.

3. Concept of Crime and Statutory Terminology

- **Definition of Crime (Reyes, citing 1 Bouvier's Law Dictionary, Rawle's 3rd Rev. 729):**

> *"Crime is an act committed or omitted in violation of a public law forbidding or commanding it."*

- **Hierarchy of Terms:**
- **Crime:** The broad generic term encompassing all punishable statutory violations.
- **Felony (*Delito*):** An act or omission punishable specifically by the **Revised Penal Code** (Art. 3, RPC).
- **Offense:** An act or omission punishable by **Special Penal Laws** (Acts, R.A.s, P.D.s, B.P.s).
- **Infraction or Misdemeanor:** A violation of a local or municipal ordinance.
- **Private Offenses:** Crimes against chastity or honor (concubinage, adultery, seduction, abduction, acts of lasciviousness, defamation imputing private crime) which cannot be prosecuted *de oficio* without a verified complaint filed by the offended party (Rule 110, Sec. 5).
- **Victimless Crimes:** Acts penalized where there is no direct individual complaining victim, intended to safeguard morals and public order (e.g., gambling, public nuisance).
- **Status Offenses:** Offenses predicated upon an individual's personal condition rather than a specific overt felonious act.

4. State Authority to Punish (*Jus Puniendi*) & Constitutional Limitations

- **Source of Authority:** Inherent attribute of state sovereignty rooted in **Police Power** (Const. Art. II, Sec. 5; Art. VI, Sec. 1).
- **Substantive Constitutional Limitations:**

10. **Ex Post Facto Law Prohibition (Art. III, Sec. 22; Art. 21 RPC):** A law is ex post facto when it:

- Makes criminal an act innocent when done;
- Aggravates a crime or makes it greater than when committed;
- Inflicts a greater punishment than the law annexed at the time of commission;
- Alters the legal rules of evidence to require less or different testimony to convict;
- Deprives an accused of a lawful defense available at the time of the act; or
- Regulates civil rights with retrospective punitive burdens.

- *Cases:* In re Kay Villegas Kami, Inc. (35 SCRA 429); People v. Villaraza (81 SCRA 95); U.S. v. Diaz-Conde (42 Phil. 766); People v. Derilo (G.R. No. 117818, April 18, 1997).

11. **Bill of Attainder Prohibition (Art. III, Sec. 22):** A legislative act which inflicts punishment without a judicial trial.

- *Case:* People v. Ferrer (48 SCRA 382) — Anti-Subversion Act (R.A. 1700) upheld because it did not automatically punish designated individuals, but required the prosecution to prove active membership and overt acts in court.

12. **Due Process & Void-for-Vagueness Doctrine (Art. III, Sec. 1 & 14):** A penal statute must be sufficiently clear to give fair notice to men of common intelligence.

- *Cases:* Alfredo Romualdez v. Sandiganbayan (G.R. No. 152259, July 29, 2004); SPARK v. Quezon City (G.R. No. 225442, Aug. 8, 2017).

13. **Publication Requirement (Civil Code Art. 2):** All penal statutes and circulars carrying penal sanctions must be published in full in the Official Gazette or a newspaper of general circulation as an indispensable condition of due process (Tañada v. Tuvera, 136 SCRA 27; Pesigan v. Angeles, 129 SCRA 174).

5. The Three Fundamental Characteristics of Criminal Law (G-T-P)

A. Generality (Civil Code Art. 14)

- **Principle:** Penal laws are obligatory upon all persons who reside or sojourn in Philippine territory, regardless of citizenship, nationality, race, or sex.
- **Exceptions to Generality:**

14. **Treaty Stipulations:** Visiting Forces Agreement (VFA), Enhanced Defense Cooperation Agreement (EDCA).
15. **Principles of Public International Law:** Sovereigns, Heads of State, Ambassadors, and Ministers Plenipotentiary are absolutely immune from local criminal prosecution.
16. **Laws of Preferential Application:** Congressional Parliamentary Speech Immunity (1987 Const. Art. VI, Sec. 11: no member of Congress shall be questioned nor held liable in any other place for any speech or debate in Congress or in any committee thereof).

- **Reyes Critical Distinction — Diplomatic vs. Consular Agents:**
- **Ambassadors & Diplomatic Ministers:** Enjoy complete immunity from local penal jurisdiction.
- **Consuls & Vice-Consuls:** Commercial representatives, NOT diplomatic agents. Consuls do NOT enjoy immunity from criminal arrest and prosecution under Philippine law, unless an express bilateral treaty grants it (Schneckenburger v. Moran, 63 Phil. 249; Liang v. People, 323 SCRA 692).

B. Territoriality (RPC Art. 2; Const. Art. I)

- **Principle:** Penal laws are enforceable only within the terrestrial, fluvial, and aerial domains, territorial sea, and maritime boundaries of the Philippine archipelago.
- **Extraterritorial Exceptions under Article 2 RPC (Triable in PH courts even if committed abroad):**

17. Offenses committed on a **Philippine ship or airship** registered with Philippine authorities.
18. **Forging or counterfeiting** Philippine coins, currency notes, or government bonds/securities.
19. **Introduction** into the Philippines of such forged or counterfeit obligations.
20. Offenses committed by **public officers or employees in the exercise of their official functions** abroad (e.g., bribery, malversation, direct assault).

21. Crimes against **national security** (Treason Art. 114, Espionage Art. 117) and the **law of nations** (Piracy and Mutiny Art. 122).

- **Merchant Vessels in Territorial Waters (French vs. English Rule):**
- **French Rule:** Flag state retains exclusive jurisdiction; host state intervenes *only* if the crime affects the peace and order of the port.
- **English Rule (FOLLOWED IN THE PHILIPPINES):** Coastal state has jurisdiction over all offenses committed aboard foreign merchant vessels in its territorial waters, *unless* the crime affects purely the internal management and discipline of the vessel.
- *Cases:* U.S. v. Look Chaw (18 Phil. 573 — possession of opium in transit not triable; unloading/landing is triable); People v. Wong Cheng (46 Phil. 729 — smoking opium aboard merchant vessel anchored in Manila Bay compromises public order; triable locally); U.S. v. Ah Sing (36 Phil. 978); People v. Lo-lo & Saraw (43 Phil. 19 — Piracy is *hostis humani generis*; universal jurisdiction).

C. Prospectivity (RPC Arts. 1, 21, 22; Civil Code Art. 4)

- **Principle:** Penal laws look to the future (*Lex prospicit, non respicit*).
- **Exception (Article 22 RPC — Favorable Retroactivity):** Penal laws have retroactive effect in so far as they favor the accused, **PROVIDED** that the accused is **NOT a habitual delinquent** under Article 62(5) RPC.
- Applies even if the accused is already serving sentence under final judgment.
- *Cases:* Gumabon v. Director of Prisons (37 SCRA 420); People v. Narvaez (121 SCRA 389); People v. Lacson (382 SCRA 365).

6. Construction and Interpretation of Penal Laws

22. **Rule of Lenity / In Dubio Pro Reo:** Penal laws are strictly construed against the State and liberally in favor of the accused (Centeno v. Villalon-Pornillos, 1994; People v. Temporado, 2008).
23. **Harmonization:** All provisions must be read together (People v. Garcia, 1950).
24. **Spanish Text Dominance:** The Spanish text of the Revised Penal Code prevails over its English translation because the RPC was enacted in Spanish by the Philippine Legislature (People v. Mesias, 65 Phil. 267).
25. **Duty of Court under Article 5 RPC:**

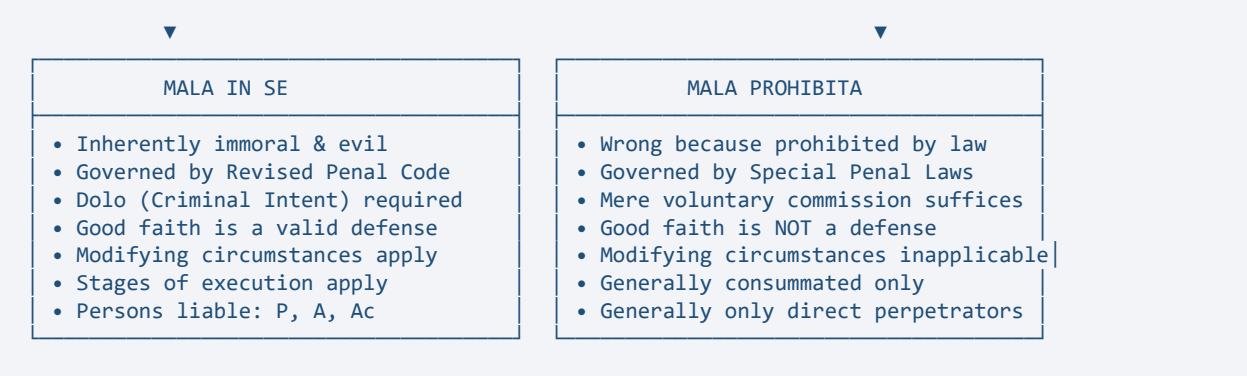
- *Par. 1:* If act is not covered by law -> Acquit accused, report to President.
- *Par. 2:* If penalty is excessively severe -> Convict, impose penalty, recommend executive clemency.

Part II: Felonies and Criminal Liability

(Syllabus Pages 5–8; Codal Articles 3 to 10 RPC)

1. Classification of Crimes: Mala In Se vs. Mala Prohibita





- **Reyes Caveat (Important Exception):** Not all crimes under Special Penal Laws are *mala prohibita*. When a special statute penalizes an act that is inherently wrongful and immoral (e.g., Plunder under R.A. 7080, Anti-Child Abuse under R.A. 7610), the offense is **MALA IN SE** and criminal intent (*mens rea*) is an indispensable element (Estrada v. Sandiganbayan, 369 SCRA 394).
- **Crimes Involving Moral Turpitude:** Inherently contrary to justice, honesty, modesty, or good morals (Teves v. COMELEC, G.R. No. 180363, 2009).
- **Relation of RPC to Special Laws (Article 10 RPC):** The RPC is supplementary to special penal laws unless the special law explicitly provides otherwise (Ladonga v. People, 2005).

2. Definition & Elements of Felonies (Article 3 RPC)

- **Statutory Text:** Felonies are acts or omissions punishable by law committed by means of deceit (*dolo*) or fault (*culpa*).
- **Elements of a Felony:**

26. An external physical act or a statutory omission.
27. The act or omission is punishable by the Revised Penal Code.
28. The act is committed by means of **Dolo** (deceit/intent) or **Culpa** (fault/negligence).

A. Intentional Felonies (Dolo)

- **Three Requisites of Dolo:**

29. **Freedom:** Volition of the person acting without physical or moral compulsion.
30. **Intelligence:** Mental capacity to understand the nature and consequences of the act.
31. **Intent:** Conscious purpose to produce an unlawful result.

- **Mistake of Fact (*Ignorantia Facti Excusat*):** An honest misapprehension of fact negates criminal intent.
- **Requisites (The Ah Chong Rule, 15 Phil. 488):**

32. Act would have been completely lawful had the facts been as believed.
33. Intention was completely lawful.
34. Mistake was honest and without fault or negligence.

- *Contrast:* In People v. Oanis (74 Phil. 257), police officers shot a sleeping man without verifying his identity; mistake of fact was rejected because of gross negligence.

B. Culpable Felonies (Culpa, Arts. 3 & 365)

- **Three Requisites of Culpa:**

35. Freedom
36. Intelligence
37. **Imprudence or Negligence:**

- *Imprudence (Deficiency of Action):* Doing what ought not to be done; failure to take necessary precautions.
- *Negligence (Deficiency of Perception):* Failing to do what ought to be done; lack of foresight or care.
- **Ivler Doctrine:** Under Philippine law, reckless imprudence under Article 365 is a single, distinct crime; it cannot be complexed with its resulting physical injuries or homicide under Article 48.

3. How Criminal Liability is Incurred (Article 4 RPC)

A. Article 4, Paragraph 1 — Proximate Cause Doctrine

- **Principle:** Any person committing a felony (*delito*) incurs criminal liability although the wrongful act done be different from that which he intended (*el que es causa de la causa es causa del mal causado*).
- **Requisites:**

38. That an intentional felony was committed.
39. That the wrong done is the direct, natural, and logical consequence (proximate cause).

- **Three Classic Causes of Divergence:**

40. **Praeter Intentionem (Art. 13[3]):** Injurious result is graver than intended -> Ordinary mitigating circumstance (U.S. v. Brobst, 14 Phil. 310; People v. Albuquerque, 59 Phil. 150).
41. **Aberratio Ictus (Mistake in the Blow):** Offender aims at A, but strikes B due to bad aim -> Complex crime under Article 48 (People v. Adriano, 2015; People v. Guillen, 85 Phil. 307).
42. **Error in Personae (Mistake in Identity):** Offender aims at B believing him to be A -> Governed by Article 49; penalty for the lesser crime in its maximum period (People v. Sabalones, 1998; People v. Hilario, 2001).

B. Article 4, Paragraph 2 — Impossible Crimes

- **Requisites:**

43. The act performed would be an offense against **PERSONS** or **PROPERTY**.
44. Performed with **EVIL INTENT**.
45. Accomplishment is **INHERENTLY IMPOSSIBLE** (physically or legally), or the means employed are **INADEQUATE** or **INEFFECTUAL**.
46. The act performed does not constitute another violation of the RPC.

- **Penalty (Article 59 RPC):** *Arresto mayor* or fine from ₱40,000 to ₱200,000.
- *Cases:* Intod v. CA (215 SCRA 52 — firing into an empty bedroom; factual/physical impossibility); Jacinto v. People (2009 — stealing a worthless post-dated check; impossible crime of theft).

4. Stages of Execution (Articles 6 & 7 RPC)

- **Consummated:** All elements necessary for execution and accomplishment are present.
- **Frustrated:** Offender performs all acts of execution which should produce the felony as a consequence, but which nevertheless do not produce it by reason of causes independent of the will of the perpetrator (subjective phase completely passed).
- **Attempted:** Offender commences commission directly by overt acts, but does not perform all acts of execution by reason of some cause or accident other than his own spontaneous desistance (still in subjective phase).

- **Spontaneous Desistance (Art. 6 par. 3):** An absolutory cause exempting from liability for the attempted stage if the actor desists voluntarily before performing all acts of execution.
- **Specific Crime Stage Doctrines in Syllabus:**
- **Theft:** Consummated upon unlawful taking into physical/constructive possession. Under Philippine law, **THERE IS NO FRUSTRATED THEFT** (Aristotel Valenzuela v. People, G.R. No. 160188, 2007).
- **Rape:** Consummated by the **slightest labial penetration** of the female organ by the male organ; emission or hymen rupture is not required (People v. Erinia, 50 Phil. 998; People v. Campuhan, 329 SCRA 270; People v. Agao, 2022).
- **Robbery:** Commences upon overt acts of violence or intimidation (People v. Lamahang, 61 Phil. 703; People v. Salvilla, 184 SCRA 671).
- **Homicide / Murder (The Mortal Wound Test):** Mortal wound inflicted + victim survives through prompt medical surgery = **FRUSTRATED**; non-mortal wound inflicted = **ATTEMPTED** (People v. Borinaga; People v. Sy Pio; Etino v. People, 2018).

5. Conspiracy and Proposal (Article 8 RPC)

- **Conspiracy:** Two or more persons come to an agreement concerning the commission of a felony and decide to commit it.
- **Two Roles of Conspiracy:**

47. *As a Substantive Crime:* Punishable ONLY when specifically provided by law (Treason Art. 115, Rebellion Art. 136, Sedition Art. 141, Monopolies Art. 186, Coup d'etat).
48. *As a Rule of Collective Liability:* "The act of one is the act of all" (People v. Peralta, 25 SCRA 759; Quidet v. People, 2010).

6. Multiple Offenders: The 4 Classes Compared

Characteristic	Recidivism (Art. 14[9])	Reiteracion (Art. 14[10])	Habitual Delinquency (Art. 62[5])	Quasi-Recidivism (Art. 160)
Number of Convictions	At least 2	At least 2	At least 3 convictions for specific crimes	At least 2 (commits felony while serving sentence)
Nature of Crimes	Embraced in **SAME TITLE** of the RPC	Embraced in **DIFFERENT TITLES** of the RPC	Limited to **F-R-E-E-T-S** (Falsification, Robbery, Estafa, Embezzlement, Theft, Serious/Less Serious Physical Injuries)	**ANY FELONY** under the RPC
Time Interval	At time of trial for second crime	Previous sentence must have been **SERVED**	Within **10 YEARS** from release or last conviction	Before serving or **WHILE SERVING SENTENCE**

Penal Effect	Generic aggravating circumstance	Generic aggravating circumstance	Imposes **MANDATORY ADDITIONAL PENALTY** on top of principal penalty	Special aggravating: **MAXIMUM PERIOD** of new penalty; CANNOT be offset by mitigating

Part III: Circumstances Which Affect Criminal Liability

(Syllabus Pages 8–14; Codal Articles 11 to 15 RPC; R.A. 9262; R.A. 9344; R.A. 10630)

1. Justifying Circumstances (Article 11 RPC)

- **Nature:** Act is completely lawful and justified. **No crime, no criminal, no criminal liability, and NO civil liability ex delicto** (except Par. 4).
- **Burden of Proof:** Accused admits the act; burden shifts to prove defense by clear and convincing evidence.
- **The Six Categories:**

49. **Self-Defense (Art. 11[1]):**

- *Requisite 1:* **Unlawful Aggression** (*condition sine qua non*). When aggression ceases, self-defense ceases (People v. Alconga, 78 Phil. 366).
- *Requisite 2:* **Reasonable Necessity of the Means Employed** (rational equivalence test; People v. Sumicad).
- *Requisite 3:* **Lack of Sufficient Provocation** on the part of defender.
- *Special Forms:* Defense of Honor (People v. Luague; People v. Jaurigue); Defense of Property (People v. Apolinar; People v. Narvaez); Battered Woman Syndrome (R.A. 9262 Sec. 26; People v. Genosa).

50. **Defense of Relatives (Art. 11[2]):** Spouse, ascendants, descendants, siblings, relatives by affinity in same degrees, consanguinity to 4th civil degree. If relative provoked, defender took no part therein (U.S. v. Esmedia).
51. **Defense of Strangers (Art. 11[3]):** Any person not covered by Art. 11(2). Defender must NOT be induced by revenge, resentment, or other evil motive (People v. Olarbe, 2018).
52. **State of Necessity (Art. 11[4]):** Avoiding actual existing evil; injury feared greater than done; no other practical means. **SOLE JUSTIFYING CIRCUMSTANCE WITH CIVIL LIABILITY** (borne by beneficiaries under Art. 101; Ty v. People).
53. **Fulfillment of Duty / Lawful Exercise of Right (Art. 11[5]):** Accused acted in performance of duty or right; injury committed was the necessary consequence (People v. Delima; Cabanlig v. Sandiganbayan; People v. Belbes).
54. **Obedience to Lawful Order of Superior (Art. 11[6]):** Superior order; lawful purpose; lawful means. Manifestly illegal order never justifies (People v. Beronilla; Tabuena v. Sandiganbayan).

2. Exempting Circumstances (Article 12 RPC)

- **Nature:** Act is wrongful and criminal, but the **actor lacks voluntariness, intelligence, or intent**. No criminal liability, but **CIVIL LIABILITY REMAINS** (except Par. 4 — Accident).

- **The Seven Categories:**

55. **Imbecility / Insanity (Art. 12[1]):** Imbecile is exempt in ALL cases. Insane is exempt unless acted during a lucid interval. Cognitive test applies: complete deprivation of intelligence (People v. Bonoan; People v. Roa, 2017).
56. **Somnambulism / Automatism:** Sleepwalking; total absence of volition (People v. Taneo, 58 Phil. 255).
57. **Minority (R.A. 9344 as amended by R.A. 10630):**

- *15 years and under:* Absolutely exempt from criminal liability; mandatory intervention.
- *Above 15 but below 18:* Exempt UNLESS acted with discernment. If with discernment, entitled to privileged mitigating circumstance (Art. 68) and automatic suspension of sentence.

58. **Accident (Art. 12[4]):** Lawful act; due care; mere accident; without fault or intent. **NO CRIMINAL AND NO CIVIL LIABILITY** (People v. Bindoy; Pomoy v. People).
59. **Irresistible Force (Art. 12[5]):** Physical coercion from third person (*vis absoluta*; U.S. v. Caballeros).
60. **Uncontrollable Fear (Art. 12[6]):** Mental intimidation of equal or greater injury (*vis compulsiva*; People v. Anod).
61. **Insuperable Cause (Art. 12[7]):** Lawful or physical impossibility to perform legal duty (U.S. v. Vicentillo; People v. Bandian).

3. Mitigating Circumstances (Article 13 RPC)

- **Ordinary Mitigating (Art. 13):** Offsets generic aggravating; lowers penalty to minimum period (Art. 64).
- **Privileged Mitigating (Arts. 68, 69):** Cannot be offset; reduces penalty by 1 or 2 degrees.
- **Ten Paragraphs:**

62. *Incomplete Justifying/Exempting (Art. 13[1] & 69)*
63. *Age: Under 18 or over 70 (Art. 13[2])*
64. *Praeter Intentionem (Art. 13[3])*
65. *Sufficient Provocation (Art. 13[4])*
66. *Immediate Vindication of Grave Offense (Art. 13[5])*
67. *Passion or Obfuscation (Art. 13[6])*
68. *Voluntary Surrender & Plea of Guilty (Art. 13[7] — Two separate mitigating circumstances)*
69. *Physical Defects: Deaf, mute, blind (Art. 13[8])*
70. *Illness (Art. 13[9])*
71. *Analogous Circumstances (Art. 13[10])*

4. Aggravating Circumstances (Article 14 RPC)

- **Four Kinds (Reyes):** Generic, Specific, Qualifying (changes crime nature, e.g. murder), Inherent.
- **21 Paragraphs Analyzed:**
- *Par. 1:* Public position abused.
- *Par. 2:* Contempt of public authority.
- *Par. 3:* Insult to rank, age, sex, dwelling.
- *Par. 4:* Abuse of confidence or obvious ungratefulness.
- *Par. 5:* Palace of Chief Executive / Place of religious worship.
- *Par. 6:* Nighttime, uninhabited place, band (*cuadrilla*).
- *Par. 7:* Calamity / conflagration.
- *Par. 8:* Aid of armed men.

- *Par. 9:* Recidivism.
- *Par. 10:* Reiteracion / Habituality.
- *Par. 11:* Price, reward, or promise.
- *Par. 12:* Inundation, fire, poison, explosion.
- *Par. 13:* **Evident Premeditation:** (a) Time determined, (b) Overt act clinging to plan, (c) Sufficient lapse of time for reflection.
- *Par. 14:* Craft, fraud, or disguise.
- *Par. 15:* Superior strength or means to weaken defense.
- *Par. 16:* **Treachery (Alevosia):** In crimes against persons, employing means, methods, or forms of execution insuring commission without risk from defense (People v. Cañete; People v. Dela Cruz, 2019).
- *Par. 17:* Ignominy.
- *Par. 18:* Unlawful entry.
- *Par. 19:* Wall, roof, floor, window broken.
- *Par. 20:* Aid of persons under 15, motor vehicle, airship.
- *Par. 21:* **Cruelty:** Deliberately augmenting physical suffering (People v. Sitchon; People v. Bernabe).

5. Alternative Circumstances (Article 15 RPC)

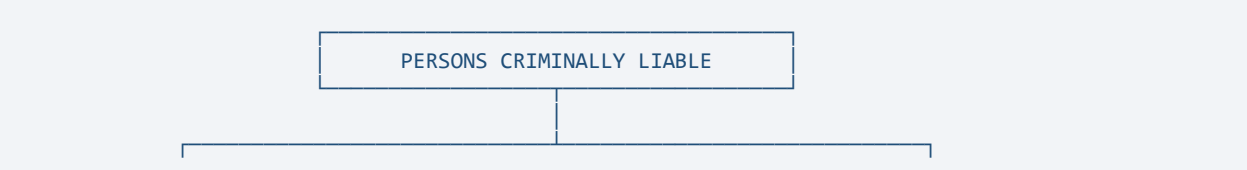
- **Relationship:** Mitigating in property crimes; Aggravating in crimes against persons.
- **Education / Degree of Instruction:** Low instruction is mitigating, but NEVER in crimes against property, chastity, or treason (People v. Macatanda).
- **Intoxication:** Mitigating if not habitual and not intentional; Aggravating if habitual or intentional (People v. Camano).

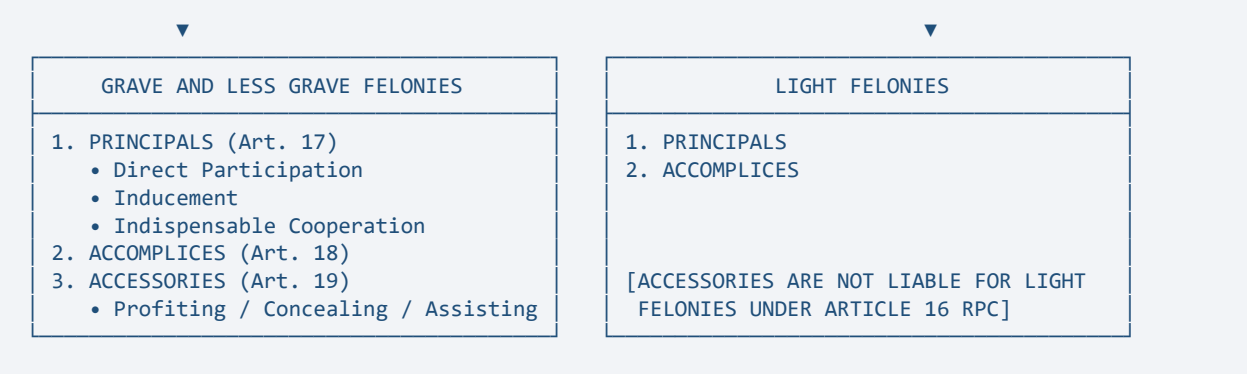
6. Absolutory Causes & Special Defenses

- **Instigation vs. Entrapment:**
- *Instigation:* Police induce innocent person to commit crime -> **ABSOLUTORY CAUSE (ACQUITTED)** (People v. Lua Chu; People v. Bartolome).
- *Entrapment:* Police trap person executing criminal design -> **LEGAL (CONVICTED)**.
- **Codal Absolutory Causes:** Art. 6(3) Desistance; Art. 16 light felonies accessories; Art. 20 accessory relatives; Art. 247 death/injuries under exceptional circumstances (*destierro*); Art. 280 trespass; Art. 332 property crimes between relatives; Art. 344 marriage in private crimes.

Part IV: Persons Criminally Liable

(Syllabus Pages 14–15; Codal Articles 16 to 20 RPC; P.D. 1612; P.D. 1829)





- **Accessories Relative Exemption (Article 20 RPC):** Accessories who are spouse, ascendants, descendants, brothers/sisters by consanguinity or affinity are EXEMPT from criminal liability, **EXCEPT** when profiting personally from the crime under Par. 1.
- **Special Statutes:**
- *Anti-Fencing Law (P.D. 1612):* Possession of stolen goods creates statutory presumption of fencing.
- *Obstruction of Justice (P.D. 1829):* Harboring suspects, tampering with evidence.

Part V: Penalties

(Syllabus Pages 15–16; Codal Articles 21 to 88 RPC; Act 4103; P.D. 968; R.A. 10951)

1. Classification & Scale of Penalties (Articles 25 & 26 RPC as amended by R.A. 10951)

- **Capital:** Death (prohibited by R.A. 9346).
- **Afflictive:** Reclusion perpetua (20y 1d to 40y), Reclusion temporal (12y 1d to 20y), Prision mayor (6y 1d to 12y), Perpetual/Temporary absolute disqualification; Fines exceeding ₱1,200,000.
- **Correctional:** Prision correccional (6m 1d to 6y), Arresto mayor (1m 1d to 6m), Destierro (25km to 250km), Suspension; Fines from ₱40,000 to ₱1,200,000.
- **Light:** Arresto menor (1d to 30d), Public censure; Fines not exceeding ₱40,000.

2. Plurality of Crimes & Complex Crimes (Article 48 RPC)

- **Compound Crime (*Delito Compuesto*):** Single act constitutes two or more grave or less grave felonies (e.g., single hand grenade killing one and injuring others; People v. Guillen).
- **Complex Crime Proper (*Delito Complejo*):** An offense is a necessary means for committing the other (e.g., Estafa through Falsification of Public Document).
- **Penalty Rule:** Penalty for the **MOST SERIOUS CRIME** in its **MAXIMUM PERIOD**.
- **Political Crimes Absorption:** Common crimes committed in furtherance of rebellion are absorbed in rebellion; NO complex crime of rebellion with murder (Enrile v. Salazar, 186 SCRA 217).
- **Special Complex Crimes (Composite Crimes):** Single indivisible offenses created by specific statutes (e.g., Robbery with Homicide Art. 294[1], Rape with Homicide Art. 266-B). Article 48 does NOT apply.

- **Continued Crime (*Delito Continuado*):** Series of acts springing from single criminal resolution (People v. De Leon, 49 Phil. 437).

3. Service of Penalties & Reformative Laws

72. **Three-Fold Rule (Article 70 RPC):** Maximum duration of sentence shall not exceed 3 times the most severe penalty imposed, and capped at **40 YEARS**.
73. **Indeterminate Sentence Law (Act 4103 as amended):**

- *Maximum Term:* Set under RPC rules considering mitigating/aggravating circumstances.
- *Minimum Term:* Fixed within the penalty next lower in degree without considering circumstances.
- *Disqualified:* Reclusion perpetua/life; treason/rebellion; habitual delinquents; escapees; sentence 1 year or less (People v. Simon; Rosa Lim v. People).

74. **Probation Law (P.D. 968 as amended by R.A. 10707):**

- Maximum sentence must NOT exceed 6 years.
- Filing for probation waives right to appeal; perfecting appeal bars probation (Francisco v. CA, 243 SCRA 384).

Part VI: Extinction of Criminal Liability

(Syllabus Pages 16–17; Codal Articles 89 to 99 RPC; Const. Art. VII Sec. 19; Act 3326; R.A. 10592)

1. Total Extinction (Article 89 RPC)

75. **Death of the Convict:** Extinguishes criminal liability and civil liability *ex delicto* pending appeal (People v. Bayotas, 236 SCRA 239; People v. Dela Cruz, 2012).
76. **Service of Sentence.**
77. **Amnesty:** Public act with Congressional concurrence; obliterates the offense; political crimes (Barrioquinto v. Fernandez; People v. Patriarca).
78. **Absolute Pardon:** Executive act by President alone; forgives penalty, does not obliterate guilt (Flora v. Oximana; Pelobello v. Palatino).
79. **Prescription of Crime (Arts. 90, 91):** 20y (death/reclusion perpetua), 15y (afflictive), 10y (correctional), 5y (arresto mayor), 1y (libel), 2m (light).
80. **Prescription of Penalty (Arts. 92, 93):** Requires evasion of sentence by escaping.
81. **Marriage of Offended Woman (Art. 344):** Extinguishes criminal action in private crimes.

2. Partial Extinction (Article 94 RPC)

- **Conditional Pardon (Art. 95):** Contractual; violation is prosecuted under Article 159 RPC (In re Infante).
- **Commutation of Sentence (Art. 96):** Reduction of sentence to a lower penalty.
- **Good Conduct Time Allowance (GCTA - Arts. 97–99; R.A. 10592):** Earned sentence deductions.

Part VII: Civil Liability Ex Delicto

(Syllabus Page 17; Codal Articles 100 to 113 RPC; Landmark Decisions)

1. Fundamental Rule (Article 100 RPC)

- Every person criminally liable for a felony is also civilly liable. Dual aspect of crime: injury to the sovereign State and injury to the private victim (Chua v. CA, 443 SCRA 142).

2. Subsidiary Liability of Employers (Articles 102 & 103 RPC)

- **Requisites:**

82. Employer is engaged in an industry.
83. Employee committed felony in discharge of duties.
84. Employee convicted with finality and found civilly liable.
85. Employee is insolvent.

- **Defense Inapplicable:** The defense of "due diligence in selection and supervision" CANNOT be raised by the employer under Article 103 RPC (Carpio v. Doroja, 180 SCRA 1; Philippine Rabbit Bus Lines v. CA, 427 SCRA 526; Basilio v. CA, 2000).

3. Components of Civil Liability (Article 104 RPC)

86. **Restitution (Art. 105):** Return of the thing itself.
87. **Reparation of Damage (Art. 106):** Payment of value when property cannot be returned.
88. **Indemnification for Consequential Damages (Art. 107):** Loss of earning capacity, medical expenses, moral damages, exemplary damages (Heirs of Raymundo Castro v. Bustos, 27 SCRA 327; People v. Jugueta, 2016).

4. Survival of Independent Civil Actions (The Bayotas Doctrine)

- When an accused dies pending appeal, his criminal liability and civil liability *ex delicto* are totally extinguished.
- However, civil actions arising from law, contract, or quasi-delict (Civil Code Arts. 32, 33, 34, 2176) **SURVIVE** and may be prosecuted separately against the deceased's estate (People v. Bayotas, 236 SCRA 239).

End of Master Topic Compendium.